

**BEFORE THE
GOVERNING BOARD
REDWOOD CITY SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Reduction in Force Involving:

**SARA ROSENBLOOM, a Permanent Certificated Employee,
Respondent.**

OAH No. 2025040197

PROPOSED DECISION

Administrative Law Judge Juliet E. Cox, State of California, Office of Administrative Hearings, heard this matter on April 28, 2025, by videoconference.

Attorney Ingrid A. Meyers represented complainant Patricia Perez, Director of Human Resources, Redwood City School District (District).

Attorney Clarissa M. Romero represented respondent Sara Rosenbloom, who also was present.

The matter was submitted for decision on April 28, 2025.

FACTUAL FINDINGS

1. At its meeting on December 11, 2024, the Governing Board (Board) of the District adopted District Resolution 12: 2024-2025. This resolution declares the

District's intention at the end of the 2024–2025 academic year to reduce certificated employee services as stated in the resolution, with the total amount of reduction equivalent to 23.7686 full time employees (FTE).

2. At its meeting on February 26, 2025, the District Board adopted District Resolution 17: 2024-2025. This resolution declares the District's intention at the end of the 2024–2025 academic year to reduce certificated employee services as stated in the resolution, with the total amount of reduction equivalent to 10.2418 FTE. The reductions Resolution 17: 2024-2025 describes are in addition to the reductions Resolution 12: 2024-2025 describes.

3. Acting in her official capacity as the District's Director of Human Resources, complainant Patricia Perez gave timely notice in writing to 19 certificated District employees that the District Board proposed to release them from employment in accordance with Resolutions 12: 2024-2025 and 17: 2024-2025.

4. Two of these employees requested hearings and, after service to them of District Statements of Reduction in Force, returned notices of participation in the hearing. Subsequently, one employee withdrew her hearing request. The hearing proceeded with respect only to respondent Sara Rosenbloom.

5. Complainant alleges that the District must release respondent Rosenbloom from employment because the District has chosen to reduce or eliminate the service she provides, and she is the only employee who provides this service.

6. Respondent Rosenbloom holds a clear single-subject credential authorizing her to teach theater. The District employed her during the 2024–2025 academic year as its only drama teacher. She teaches about half time (hours equivalent

to 0.506 FTE) at Kennedy Middle School, and also advises an extracurricular drama club.

7. During the 2024–2025 academic year, the District covered the cost of respondent’s position through local funds it had raised from a parcel tax (Measure U). The District spends Measure U funds that are available for use at Kennedy Middle School in accordance with guidance from a School Site Council (SSC) at the school.

8. At its meeting in January 2025, the Kennedy Middle School SSC discussed the likelihood that Measure U funding for the 2025–2026 academic year would be inadequate to pay for both a part-time drama teacher and a full-time cross-curricular Science, Technology, Engineering, Arts, and Mathematics (STEAM) teacher. The majority of the SSC preferred, in that event, to retain the STEAM teacher and forego a drama teacher.

9. Resolution 17: 2024-2025 states that the District will discontinue respondent’s position (Drama Teacher, Kennedy, 0.506 FTE) after the 2024–2025 academic year. This reduction will leave the District with no drama teacher, and will eliminate the only position for which respondent is certificated and competent.

10. The Parent-Teacher Organization (PTO) at Kennedy Middle School has pledged \$60,000 to the District for the 2025–2026 academic year, on the condition that the District use these funds to recreate a part-time drama teacher’s position at Kennedy Middle School. The District has accepted similar funding in the past. To accept and use these funds for the 2025–2026 academic year, the District must confirm the amount of time such a drama teacher would work, as well as the required credential(s) and any other special working conditions; must communicate this plan to the Kennedy Middle School principal; and must receive the principal’s request that the

District provide the teacher to the school. These steps have not yet occurred. If they do, the District would consider this PTO-funded position one into which respondent has the first right to be rehired.

11. During the 2024–2025 academic year, respondent developed several disagreements with District administrators and with the Kennedy Middle School principal over her compensation, and over her need for time and privacy to store breast milk for her infant. Respondent and the District have resolved some, but not all, of these disputes. No evidence shows that anyone on the District Board was aware of these disputes when the Board determined through Resolution 17: 2024-2025 that the District should eliminate its drama teacher after the 2024–2025 academic year.

12. This decision addresses all challenges respondent Rosenbloom made to complainant’s proposal to release her from the position in which she has served during the 2024–2025 academic year. Any contentions not specifically addressed in this decision are found to be without merit and are rejected. To the extent that other challenges may have been possible but were not identified during testimony or in oral or written argument, respondent has waived those challenges.

LEGAL CONCLUSIONS

1. Jurisdiction in this matter exists under Education Code sections 44949 and 44955. The prehearing notices and actions described in Findings 1 through 4 satisfy these statutes’ requirements.

2. The District, through its Board, has discretion to reduce or eliminate particular kinds of services, in the best interests of the District and its students. The

Board's exercise of this discretion as stated in Resolutions 12: 2024-2025 and 17: 2024-2025 is not arbitrary or capricious, and is not an abuse of discretion.

3. The matters summarized in Finding 11 do not establish that the District's elimination of its only drama teaching position arises from any cause personal to respondent Rosenbloom, or from any cause other than the welfare of the District's schools and of those schools' pupils.

4. In light of the matters stated in Findings 6 and 9, complainant does not propose that the District retain anyone less senior than respondent Rosenbloom to provide the services that respondent provided during the 2024–2025 academic year, or to provide any service for which respondent is certificated and competent.

5. Education Code section 44955, subdivision (c), requires the District to give notice to respondent before May 15, 2025, as to whether she will continue in her current position for the next academic year. If the PTO-funded position described in Finding 10 becomes available, the District later may rescind this notice, or may offer to rehire respondent in a slightly different position. Because of the statutory deadline, however, the uncertainty over these funds is cause for the District to give notice now to respondent Rosenbloom that her services will not continue.

6. The matters stated in Legal Conclusions 1 through 5 constitute cause under Education Code section 44949 and Resolution 17: 2024-2025 to give notice to respondent Sara Rosenbloom that the District will not require her 2024–2025 academic year services after the 2024–2025 academic year. Resolution 17: 2024-2025 confirms that the cause relates solely to the welfare of the District's schools and of those schools' pupils.

7. If the District gives notice as described in Legal Conclusion 6, that notice may create future contractual or statutory obligations for the District. Concerns over whether the District will respect or violate those obligations do not require resolution in this proceeding.

RECOMMENDATION

The District may give final notice to respondent Sara Rosenbloom that the District will discontinue her employment after the 2024–2025 academic year in the position and service she has provided during this academic year.

DATE:



JULIET E. COX

Administrative Law Judge

Office of Administrative Hearings